Privacy Policy

Version 01. Effective 1st November 2026.

This Privacy Policy outlines how I collect, use, store, and protect your personal information in accordance with the Australian Privacy Principles under the Privacy Act 1988 (Cth), the Health Records Act 2001 (Vic), and where applicable, the National Disability Insurance Scheme Act 2013 (Cth). As a counsellor practising in Victoria, I am committed to handling your personal and health information with the highest standard of care and confidentiality.

1. Personal Information

Personal information refers to any information that can identify you, including your name, contact details, and date of birth.
Sensitive information includes details about your health, mental health, beliefs, sexual orientation, or other personal matters. As a counselling practice, most information collected falls under this category and is handled with the highest level of care.

2. Why I Collect Personal Information

I collect personal information to provide counselling services and to support you effectively in addressing your concerns. This includes maintaining accurate records, fulfilling legal and ethical obligations, and communicating with you regarding your care.

You may request to remain anonymous or use a preferred name where lawful and practicable. However, identifying information, such as your legal name and contact details, may be required for service delivery, record-keeping, billing, or other legal and professional obligations.

3. How Personal Information is Collected

Personal information may be collected through:

- Information you provide verbally during sessions
- Written communication (including email, SMS, forms, and website enquiries)
- Intake forms and booking systems
- Telehealth sessions conducted via secure video conferencing platforms
- Referrals from GPs or other treating professionals
- A parent or guardian (for clients under 18 years of age)

4. Use of Personal Information

- Your information is used to:
- Provide counselling services
- Maintain appropriate clinical records
- Communicate with you regarding appointments and your care
- Meet legal and ethical obligations as a registered counsellor
- Support clinical supervision, where I do not share your name or identifying details
- Where applicable, personal information is used to coordinate and deliver NDIS-funded supports, manage billing and service agreements, and meet relevant legal, regulatory and professional obligations, including the NDIS Code of Conduct.

5. Storage and Security

Your personal information is stored securely using password-protected digital systems and, where applicable, encrypted cloud-based services and/or locked physical storage. Reasonable steps are taken to protect your information from misuse, loss, unauthorised access, modification, or disclosure.

I do not store your banking or card details. Payment records, such as invoices and receipts, are kept for tax and accounting purposes.

If I become aware of a data breach likely to cause serious harm, I will act promptly to contain it, assess it, and notify affected individuals and the Office of the Australian Information Commissioner as required by law.

6. Disclosure of Personal Information

Your personal information will not be disclosed to any third party without your written consent, except where required or permitted by law. Circumstances where disclosure may occur without consent include:

- Child protection: where required by the Crimes Act 1958 (Vic), or where permitted by law to protect a child at risk of significant harm.
- Risk of harm, including family violence: where disclosure is permitted by law to prevent or lessen a serious threat to the life, health or safety of you or another person.
- Legal obligations: Where required by law, including in response to a valid court order, subpoena or coronial inquiry.
- NDIS-related matters: where disclosure is required or authorised by law, for example in response to a lawful request from the NDIS Quality and Safeguards Commission. For plan-managed NDIS participants, with your consent, I share limited invoice information (your name, NDIS number, session dates, support item and amount) with your plan manager.

6. Disclosure of Personal Information (continued)

I do not routinely send your personal information overseas. If you ask me to share information with someone outside Australia, I will do so only with your written consent, and I will let you know that it may not be protected by Australian privacy laws once sent. Some digital tools I use, such as Gmail and Zoom, are provided by international companies and may store or process data on servers outside Australia, including in the United States. I take reasonable steps to protect your information.

7. Access and Correction

You have the right to request access to your personal information or to request corrections if you believe any information held is inaccurate, incomplete, or out of date. Requests should be made in writing and will be handled in accordance with the Privacy Act 1988 (Cth) and the Health Records Act 2001 (Vic).

8. Retention of Records

Client records are retained in accordance with professional and legal requirements:

- For adult clients, records are retained for a minimum of seven (7) years from the date of the last session
- For clients under 18 years of age at the time of counselling, records are retained until the client reaches 25 years of age
- Records are securely destroyed once the retention period has passed
- When records are destroyed, I keep a register noting your name, the period the records cover, and the date of destruction. The register contains no session content.

9. Online Services

Telehealth sessions are conducted via reputable, encrypted video conferencing platforms. While reasonable steps are taken to ensure the privacy and security of online sessions, absolute confidentiality cannot be guaranteed when using internet-based communication due to the inherent risks of digital technology.
To protect your own privacy during telehealth sessions, you are encouraged to:

- Use a private space where you cannot be overheard
- Use a secure and private internet connection
- Ensure your device is password protected

10. Complaints

If you have concerns about how your personal information has been handled, I encourage you to contact me directly in the first instance. I will aim to respond and resolve your concern within five (5) business days.

If you are not satisfied with the outcome, you may lodge a complaint with:

Office of the Australian Information Commissioner (OAIC) — for privacy-related matters

- Website: www.oaic.gov.au
- Phone: 1300 363 992

Health Complaints Commissioner Victoria (HCC) — for health information matters

- Website: www.hcc.vic.gov.au
- Phone: 1300 582 113

NDIS Quality and Safeguards Commission — for NDIS-related complaints

- Website: www.ndiscommission.gov.au/complaints
- Phone: 1800 035 544

Australian Counselling Association (ACA) — for professional conduct matters

- Website: www.theaca.net.au
- Phone: 1300 784 333

11. Changes to this Policy

This Privacy Policy is updated as required to reflect changes in legislation, practice, or services. Clients will be notified of any significant changes at their next scheduled session or via email.

12. Contact

If you have any questions regarding this Privacy Policy, please contact:

Shierly Irawan Halim

Email: hello@shierlytherapy.com.au

Phone: 0435 557 712

Website: shierlytherapy.com.au